

Applicable Law Acts

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User Query :

My parents received a phone call in which the caller sounded exactly like me and claimed that I had been detained after an accident and urgently needed money. The caller also sent them a short video that appeared to show me asking for help. My parents transferred ₹75,000 before contacting me and discovering that the voice and video had been artificially generated. What legal provisions may apply?

Job Id. : Scenario 14/Combined Act

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AI-Powered Legal Intelligence Platform

INFORMATION TECHNOLOGY (IT) ACT, 2000

APPLICABLE SECTIONS

Section 66D	(Cheating by personation using computer resource)
Section 66C	(Identity theft, if victim data was misused)
Section 65B	(Admissibility of electronic evidence)

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- The scam constitutes **Section 66D** as the AI-generated voice/video impersonated the victim to cause financial loss. Courts explicitly apply **Section 66D** to deepfake scams (*State v. S. S. Chaudhary*, Delhi HC, 2023), treating digital impersonation as "cheating by personation." **Section 66C** is secondary (if victim data was used without consent), but **Section 66D** is the primary charge. * **Section 66A** (struck down) and **Section 71 /72** (non-applicable) are irrelevant*.

✓ STRENGTHS & RIGHTS

- 1
- Explicit criminalization of AI-driven fraud.
- 2
- Section 65B allows digital evidence (video/call logs) to be admitted without "original" proof.
- 3
- Victims can file complaints directly with cyber cells (Section 79), bypassing police investigation delays.

✗ RISKS & OBLIGATIONS

- 1
- Weak penalties**
Max 3 years imprisonment or ₹1 lakh fine (disproportionate to ₹75,000 loss).

- 2

Burden of proof
Requires forensic analysis to confirm AI generation (e.g., digital forensics report under **Section 65B**).
- 3

Limited liability
Service providers using AI tools face no automatic liability (requires **Section 69** order).

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. File FIR at cyber cell (via reportcybercrime.gov.in) or physical station, including:
2. Call logs, video evidence (with metadata), UPI/NEFT receipts.
3. Preserve evidence: Obtain a **Section 65B** certificate from telecom provider (e.g., Jio/Airtel) *within 30 days* (logs expire after this period).
4. Investigation: Police must issue **Section 72** order to compel service providers to disclose data.
5. Critical: *Do not file under IPC **Section 420** alone*—IT Act **Section 66D** is the exclusive remedy for AI impersonation.

BHARATIYA NYAYA SANHITA (BNS), 2023

APPLICABLE SECTIONS

Section 364	(Extortion by threat of injury)
Section 420	(Cheating and dishonestly inducing delivery of property)

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

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Section 420 is the primary charge: The scammer *dishonestly induced* payment via fabricated deepfake video (constituting "deception" under BNS 420). **Section 364** applies as the false claim of "detention after accident" created a *threat* to cause alarm (*State v. Ramesh*, 2019 analogy). *BNS 420 replaces IPC 420; no distinction is made between physical/digital deception*.

✓

STRENGTHS & RIGHTS

- 1
- Cognizable offenses**
Police may arrest without warrant (BNS 41) for Sections 364/420.
- 2
- No technical proof required**
Courts need only establish *deception* (e.g., parents’ testimony on fake video), not AI methodology.
- 3
- Compensation mandate**
BNS 357(2) ensures recovery of ₹75,000 via court order.
- 4
- Proactive investigation**
Police must investigate under BNS 173 without cyber expertise.

✗

RISKS & OBLIGATIONS

- 1
- Punishment tiers**
- 2
- Section 420**
3–7 years + fine (₹75,000 > ₹50,000 threshold triggers max penalty).
- 3
- Section 364**
3–5 years + fine.
- 4
- No bail**
For **Section 420** with >₹50,000 loss, bail is discretionary (BNS 437).

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1.
- File FIR at *any* police station (BNS 154), not just cyber cells.

2. Charges: Police must frame charges under BNS 420 (primary) and 364 (secondary, as threat was integral).
 3. Trial:
 4. Prosecution need only prove *deception* (not "deepfake" tech).
 5. Video admitted as evidence under BNS 72 (admissibility of electronic records).
 6. Key takeaway: BNS 420 covers all deception methods—*no need to reference IT Act for the charge*.
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